

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 21, 2026, AT 8:30 A.M.

contract between attorney and client which provides for an alternative to arbitration under this article, for recovery of fees, costs, or both. The written notice shall be in the form that the board of trustees prescribes, and shall include a statement of the client's right to arbitration under this article. Failure to give this notice shall be a ground for the dismissal of the action or other proceeding.” (Bus. & Prof. Code, § 6201; Ca. St. Rules of State Bar Rule 3.501.)

Here, plaintiff does not meet its burden to establish the breach of contract cause of action because there is insufficient evidence that plaintiff provided defendant with the required notice. Accordingly, plaintiff's motion for summary judgment is denied.

4. M-CV-0096408 CAMPUS OAKS APT. v. PROVENCIO, ERICKA

Defendant's Motion to Set Aside Default

Defendant moves to set aside the default entered against her on April 8, 2026.

On May 5, 2026, the court granted defendant's ex parte application for stay pending the hearing on her motion to set aside default.

Code of Civil Procedure section 473, subdivision (b) dictates that an “[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted.” (Code Civ. Proc., § 473, subd. (b).)

Here, defendant's motion is not accompanied by a copy of the answer or other responsive pleading.

Additionally, the court's order granting defendant's ex parte application for stay required defendant to serve the court's order and her application and supporting papers on plaintiff by May 6, 2026, and file a proof of service with the court by May 6, 2026, indicating service had been completed. A review of the court record reflects no proof of service has been filed indicating service was effectuated.

Accordingly, defendant's motion is denied without prejudice.

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